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Sun Prairie Police propose ALPR switch, resident opposition remains

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Residents across the region have been voicing opposition to the use of automated license plate reader (ALPR) technology by their local police departments over the past few months.

Some have picked out one top vendor, Flock Safety, in particular due to privacy concerns and other instances across the country where it has refused to remove cameras after being instructed to do so.

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File photo: Flock Safety camera mounted on a telephone pole in Sun Prairie

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Over the past year, a slew of area municipalities like Fitchburg, Verona, Monona, and Cottage Grove have decided to end or not renew their ALPR contracts with Flock.

In some cases, it was convenient operationally. The Waunakee Police Department removed its five Flock cameras after they were vandalized in August.

For other communities, the decision was more policy based. The Cottage Grove Village Board unanimously voted to discontinue the use of its Flock cameras immediately on Sept. 21, with further discussion about a complete ban of ALPRs to potentially come in the future.

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The City of Sun Prairie announced that it would not be renewing its contract with Flock for the coming year on Sept. 16.

The Sun Prairie Police Department (SPPD) currently has six cameras that will expire on Dec. 31, 2026, and three others that will expire on March 31, 2027.

SPPD Chief Kevin Warych has stated that the decision is in response to resident feedback, but that he believes ALPR systems are still valuable tools for law enforcement.

As somewhat of a compromise, Warych proposed to the Sun Prairie Public Safety Committee on Wednesday, Oct. 7 that the city switch to Axon for its ALPR services going forward.

“I have subscribed to taking the open book approach on as many as issues that I’m allowed to in policing, and license plate reader technology is very much that,” he said on Oct. 7. ”The reason we bring this forth to the public safety committee is to be open and transparent.”

The value Sun Prairie police see in ALPR

Warych stated that Flock hasn’t done anything specific in Sun Prairie to “jeopardize” its trust, but that he also wasn’t “naive” to the discussions that have been taking place across the state.

“About a year ago today, we had a very similar conversation… I summed it up (as) people did not like the current vendor,” he said.

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Warych noted that SPPD is already switching to Axon for its body-worn cameras in 2027, and that having all of its software working on the same system would already be a benefit.

He explained that four “buckets” make up his professional stance on ALPR technology:

- Public mistrust towards certain vendors, like Flock.
- The standing legal precedents that do not see the technology as a violation of the 4th amendment, and that they’ve ruled there is no reasonable expectation of privacy for publicly displayed plates.
- How police departments structure their data retention policies for the information that ALPR cameras collect.
- And how police departments go about sharing, or not sharing, the data they collect with outside organizations and other authorities.

In regard to the last two points, Warych proposed reducing SPPD’s data retention window of license plate captures to a 14-day trial period and promised it will never share data with federal authorities.

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Sun Prairie Police Chief Kevin Warych.

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He added that if the city were to enter a contract with Axon, it would be for one year at a time. SPPD would also require a Memorandum of Understanding with the company to govern how its data is accessed and shared.

In a one-pager provided by Axon in the Oct. 7 online meeting agenda, the company stated that law enforcement agencies own their own ALPR data, and that it only has access for support requests. Additionally, partner agencies own the technology's hardware such as poles and cameras.

Part of Warych's support for ALPR technology in Sun Prairie rests on the records the department has kept on "success stories."

SPPD has tracked ALPR assistance dating back to May 2023. Since that time and up until now, the technology has provided 83 license plate "hits" that have aided in investigations ranging from property and vehicle theft to hit-and-runs and homicides.

"When we're standing in front of that person regarding (a) crime, the police officer should ask themselves, 'Have we done everything we possibly can to help that victim?' I believe license plate reading technology gives us another tool to help that victim," Warych said.

Many of the Sun Prairie residents who came to speak in opposition of the proposed contract with Axon on Oct. 7 stressed that they do support SPPD. The companies who make ALPR technology are a different story, however.

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SPPD is not the issue

Eight individuals registered in opposition to the Axon contact on Oct. 7. Additionally, 20 residents submitted forms in opposition to be read in their absence as well.

One primary theme was a growing unease with the amount their day-to-day lives are being recorded in society but not with SPPD's operations.

Anthony Olsen was one such Sun Prairie resident who registered in opposition that evening. He stated having worked in public safety for over 20 years and as a dispatcher for the past decade.

"I want to reinforce that the public correctly fears mass surveillance… These are not simply license plate scanners. Please call them what they are. They are surveillance scanners capable of facial recognition, body motion style, and gait analysis," he said.

Olsen continued by saying that he saw more merit in ALPRs mounted on squad cars than at fixed locations, and that collecting this information on residents creates a database to be used by bad actors even if SPPD doesn't intend to share it.

Hannah Thomas was another Sun Prairie resident holding similar law enforcement dispatching experience to Olsen's, as well as a similar support for police but not ALPR technology.

"I also believe that just because something has been ruled legal doesn't make it morally correct. It doesn't matter whose logo is on an ALPR pole… switching lenders is not a fix for the community's concerns," Thomas said on Oct. 7.

Roland Ryan, another Sun Prairie resident in opposition, told the public safety committee, "Americans disagree on a lot of things. But, this is one of the few issues in which both sides of the aisle agree. Most of us agree."

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A covered Flock Safety camera is shown on June 8 on U.S. Highway 12/18 just west of State Highway 73 near Deerfield. The Dane County Sheriff's Office said it covered up the automated license plate reader (ALPR) cameras when Flock did not remove them by May 31, the date the county's contract with Flock expired.

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Other residents in opposition echoed the sense of faith in SPPD, but said their privacy concerns regarding corporations and other parties should be reason enough to go back to the old way of policing.

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Commissioner Julie Cavanaugh seemed to see some merit in the residents' concerns residents that evening.

"Where it starts to hit me is that a private company has access to all of this. We don't know who their investors are. It could be used as a tool to harm people… While it can prevent further victims and it can solve crimes, it also could create

victims," she said.

District 2 Alder and commissioner Alder Santiago Rosas also noted that the chief's commitments to not share ALPR data with federal authorities, like Immigration and Customs Enforcement (ICE), has led to his "confidence" in the proposal.

It should be noted that four residents registered in favor of the switch to Axon on Oct. 7, with the two supportive speakers being Sun Prairie Police & Fire Commission members Terry McIlroy, a former alder, and Lorie Candelmo.

"I fully support the use of license plate readers within the city limits of Sun Prairie. They have proven to be a great tool in getting evidence to solve some crimes sooner than later," McIlroy said.

A situation where 'everyone is right'

At the end of the Oct. 7 meeting, Warych reiterated that SPPD has residents' privacy as one of its utmost priorities along with protecting its residents.

He noted that officers already conduct audits on who is accessing ALPR records to ensure officers within the city aren't abusing the technology.

His perceived value of the technology and his officers' integrity led to his recommendation for Axon cameras. He also recognized where the public is coming from, however.

"I understand people's perspectives, I understand the lens that they look at things and their viewpoints. Everybody is right in this situation," he said. "I'm making the recommendation to keep license plate reader technology. I believe that the city has listened to residents."

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In an interview with The Star after the Oct. 7 meeting, Warych said his experience with how Axon handles the city's body-warn camera footage over the years also has contributed to his confidence in their claims about privacy.

Even if his opinion on the topic differs from the majority of residents who have spoken up on the issue, Warych appreciated the number of people it has engaged.

"If I got this level of engagement in all our community meetings, we would have excellent communication in the community," he said. "We would be better off because we're working with them. We would develop more relationships. I think we would solve more problems."

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